DATA SHARING AGREEMENT: Early Help and Supporting Families National Insights data collection

DEPARTMENT FOR LEVELLING UP, HOUSING AND COMMUNITIES
AND
CAMDEN COUNCIL

THIS AGREEMENT is made the 15th day of November 2023

BETWEEN

THE DEPARTMENT FOR LEVELLING UP, HOUSING AND COMMUNITIES of 2 Marsham Street, London, SW1P 4DF ("**DLUHC**")

and

CAMDEN COUNCIL of 5 Pancras Square, London N1C 4AG

1. BACKGROUND

1.1 The Early Help data collection is aiming to collect data on all families worked with by early help services in all 152 upper tier local authorities in England bi-annually to better understand issues faced by families and the long-lasting positive change they have achieved.

1.2 Insights from this research will enable central government and local authorities to resource and commission support more effectively and target specialist support at specific problems (thereby increasing the impact and value for money of existing programmes) and provide essential inputs to future policy discussions on the shape of early help and children's social care and the response to the Care Review.

1.3 This will be the first collection of its kind for Early Help cases.

1.3.1 The collection will include all cases with an Early Help assessment, as well as Children's Social Care cases if they have been successfully claimed under the Supporting Families programme.

1.4 The data will be used by local authorities and central government to better understand;

1.4.1 the problems families are facing

1.4.2 which services are providing support to families

1.4.3 whether long lasting positive change has been achieved across those problems.

1.5 This insight will enable central government and LAs to resource and commission support more effectively, identify and share evidence of good practice and target specialist support towards specific problems.

1.6 A DPIA has been carried out, which covers the data sharing process and reviewed by the KIA team.

1.7 This Agreement exists to provide a framework for compliance with UK data protection provisions and the Human Rights Act 1998, including the data protection principles at article 5 of the UK GDPR, and taking account of the Information Commissioner's Code of Practice on Data Sharing.

IT IS NOW AGREED as follows:

2. DEFINITIONS AND INTERPRETATION

2.1 In this Agreement the following words and phrases shall have the following meanings, unless expressly stated to the contrary:

"Authorised Representatives" means the nominated lead officer representing each of the parties with delegated authority to handle the day-to-day matters arising from this Agreement;

"Data Controller" has the meaning in article 4(7) of the UK GDPR. For this project DLUHC will be the data controller of the personal data.

"Data processor" has the meaning in article 4(8) of the UK GDPR. For this process, the Supplier (IFF Research) is a data processor on behalf of DLUHC. Additionally, a small number of analyst colleagues in the Department for Education will also perform the role of data processor on behalf of DLUHC.

"Data Protection Legislation" means all applicable data protection and privacy legislation in force from time to time in the UK including, as defined at s.3(9) of the DPA 2018, the UK GDPR; the DPA 2018; regulations made under the DPA 2018; and regulations made under s.2(2) of the European Communities Act 1972 which relate to the EU GDPR or the Law Enforcement Directive

"Data" means the data shared under this Agreement. In the case of this Agreement, data means the data shared between Local Authorities (on behalf of DLUHC) and the Supplier.

"Data subject" means the subject of the personal data. In the case of this Agreement the data subjects are families with an Early Help assessment and worked with by a Lead Practitioner (under the Supporting Families programme).

"DPA 2018" means the Data Protection Act 2018;

"Environmental Information Regulations" means the Environmental Information Regulations 2004, as amended, together with any guidance and/or codes of practice for their application issued by the Information Commissioner or relevant government department in relation to such Regulations;

"FOIA" means the Freedom of Information Act 2000 (as amended);

"UK GDPR" means Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, as it forms part of the law of England and Wales, Scotland and Northern Ireland by virtue of section 3 of the European Union (Withdrawal) Act 2018

"Parties" means the parties to this Agreement, namely DLUHC and Camden Council;

"Personal Data" has the meaning in article 4(1) of the UK GDPR;

"Processing" has the meaning in article 4(2) of the UK GDPR;

"Programme" here refers to the Supporting Families programme**.**

"Project" here refers to the Early Help and Supporting Families National Insights data collection.

"Pseudo-anonymised data" bears the meaning "*being such data that cannot directly identify an individual as the personal data have been removed but includes a unique identifier that enables the person's identity to be re-connected to the data by reference to separate databases containing the identifiers as identifiable data. The unique identifier allows datasets to be linked together without knowing the identity of the person*."

"Request for Information" means a request under FOIA or the Environmental Information Regulations.

"**Supplier**" refers to the contracted third party DLUHC have commissioned to undertake the data collection and analysis on our behalf. This is IFF Research.

2.2 Headings are included in this Agreement for ease of reference only and shall not affect the interpretation or construction of this Agreement.

2.3 References in this Agreement to Clauses, Paragraphs and Annexes are, unless otherwise provided, references to the Clauses, Paragraphs and Annexes of this Agreement.

2.4 In the event and to the extent only of any conflict or inconsistency between the provisions of this Agreement and the provisions of any document referred to or referenced herein, the provisions of this Agreement shall prevail.

3. COMMENCEMENT AND TERM

3.1 This Agreement shall commence upon signature by the Parties and shall continue in effect until the end of the project (March 2025) in accordance with the requirements of this Agreement unless otherwise subject to earlier termination in accordance with Clause 17.

3.2 The Parties may, by mutual consent in writing, agree to extend this Agreement for a period to be agreed between them.

3.3 Amendments to this Agreement may only be made upon written agreement between the Parties.

4. PURPOSE OF RESEARCH AND USE OF PERSONAL DATA

4.1 Data Source:

The data (family level and cohort level) will be provided by local authorities (LAs) from their own case management systems. This will be data collected from families and partners, to provide a holistic picture of all the issues faced by families supported in Early Help and/or Children's Social Care (if the case is claimed under the Supporting Families payments by results process). The LA family identifier (Family ID) will be used to create pseudo-anonymised data.

4.1.1 Collecting the data with a family identifier is necessary in order to identify which problems are correlated with one another and associated with outcomes. Without this identifier it would also not be possible to track trends over time (problems, outcomes, re-referrals).

4.1.2 However, in the interest of data minimisation, the LA family identifier (Family ID) will be replaced by a new Family ID created by IFF before being shared back to DLUHC for government analytical use. This will minimise the sharing of personal data.

4.2 How we will collect and use the data:

DLUHC will ask the IFF Research to collect these data from local authorities via their secure data transfer portal. This portal is encrypted, and password protected. This portal will be subject to a full cyber assurance check by the DLUHC cyber security.

4.2.1 IFF Research will store the data.

4.2.2 IFF Research will perform data validations and analysis and provide reports back to the relevant local authority, and national reports to the national Supporting Families team. These reports will only contain cohort level data which is therefore non-identifiable or personal data.

4.2.3 See data flow in clause 7 for full details.

4.3 How the data will be shared:

4.3.1 The processed data file data will be provided back to DLUHC by IFF using Egress, a DLUHC approved secure file-sharing software.

4.3.2 DLUHC will share the processed data with a small number of analyst colleagues within the Department for Education (DfE) as the Supporting Families programme is a shared programme. The terms of this transfer with DfE are covered by a data processing agreement (MOU). This data will not include the original Family ID provided by LAs, and therefore will be fully anonymised.

4.3.3 When the processed data files are shared with DfE colleagues this will be via a secure, encrypted, password protected platform (DLUHC SharePoint).

4.3.4 The Supplier generated local and national reports produced will be shared with DLUHC. DLUHC will then share the relevant local and national reports back to the local authorities. Additionally, DLUHC will share the national with other relevant

government departments (DWP, DfE, DHSC, MoJ). The unique identifier/Family ID will not be able to be accessed through these reports and therefore there is no personal identifiable data contained within these reports. Therefore, they will be shared via email.

5. PURPOSE OF DATA SHARING

5.1 This will be the first collection of its kind for Early Help cases. The data will be used by local authorities and central government to better understand; a) the problems families are facing, b) which services are providing support to families and c) whether long lasting positive change has been achieved across those problems. This insight will enable central government and LAs to resource and commission support more effectively, identify and share evidence of good practice and target specialist support towards specific problems.

5.2 The project will involve processing and linking data on vulnerable families and children, but DLUHC will not have any direct relationship with these individuals.

5.2.1 The purpose of the data collection is to capture the problems and outcomes that families experience who are worked with by early help services. The data will deliver insights into what particular services are supporting families and whether long lasting positive change has been achieved across these problems.

5.3 The use of data in this way will be justified by both public interest for the general processing and the substantial public interest in protecting vulnerable children and families (special category data). This is in line with Article 6(1)(e) and Article 9(2)(g) of UK General Data Protection Regulation (GDPR) on the basis of Union or Member State law which shall be proportionate to the aim pursued, respect the essence of the right to data protection and provide for suitable and specific measures to safeguard the fundamental rights and the interests of the data subject.

5.3.1 The insight generated from the data will enable central government and local authorities to resource and commission support more effectively, identify and share evidence of good practice and target specialist support at specific problems. This will lead to an improved service for individuals and families, and families receiving the right support at the right time.

6. LAWFUL BASIS FOR PROCESSING THE DATA

6.1 The following are the lawful bases in data protection legislation under which DLUHC will process the personal data (including special categories of personal data):

6.1.1 Article 6(1)(e) of the UK GDPR - the processing is necessary for DLUHC to perform a task in the public interest or in the exercise of official authority. In particular, to help further the understanding of needs identified for families within Early Help, identify the scale of re-referrals and be able to share insight on a national and local level to support the work in improving the lives of families.

6.1.1.1 In order to rely on article 6(1)(e), article 6(3) requires there to be a separate legal basis laid down in law to justify the processing. DLUHC is relying on its common law powers to justify this processing: *the*

Secretary of State for Levelling Up, Housing and Communities relies on the common law powers of the Crown as the separate legal basis for this processing.

6.1.2 Article 9(2)(g) of the UK GDPR **–** the processing is necessary for reasons of substantial public interest. DLUHC will rely on meeting the condition in Schedule 1, Part 2, paragraph 6 of the DPA 2018 to process special category personal data in accordance with section 10(3) of the DPA 2018.

6.1.2.1 In order to track re-referral rates i.e., families who receive multiple interventions, the pseudo-anonymised Family ID needs to be supplied.

6.1.2.2 No other personal data is required to be shared so minimises the risk although the data still requires appropriate security and handling as personal data.

6.1.3 DLUHC will also meet the conditions in article 10 of the UK GDPR and section 10(5) of the DPA 2018 to process criminal offence data since processing is authorised under Section 10(5) and Schedule 1, Part 2, paragraph 6 of the DPA 2018.

6.1.3.1 Data relating to criminal convictions or offences will also be processed, for which we refer to Article 10 of GDPR. However, this will again be pseudo-anonymised non-identifiable and minimal (e.g., the presence or absence of criminal conviction within the family).

6.2 The data protection lawful bases and legal powers under which IFF Research will process the personal data (including special categories of personal data) are contained within the Contract between DLUHC and the Supplier.

6.2.1 Schedule 11 of this contract lays out the;

6.2.1.1 Identity of data controllers and data processors
6.2.1.2 The duration of processing
6.2.1.3 The nature and purpose of purposing
6.2.1.4 The type of personal data
6.2.1.5 The categories of data subjects
6.2.1.6 Plans for return and destruction of fata one processing is complete
6.2.1.7 Confirmation that all data will only be processed within the United Kingdom.

6.2.2 These data processing arrangements are also covered by a full DPIA which has been reviewed by the DLUHC KIA team.

7. THE PROCESS FOR SHARING DATA

Personal data

Non-personal data

Stage 1: Data Collection

- Data is collected by family support workers from families and recorded in local authority case management systems.
- These data are brought together with 'hard data' from partners, for example the % attendance at school.
- This captures a holistic picture of all the issues faced by the family and tracks their outcomes as per the Supporting Families Outcomes Plan.

Stage 2a: Family Level submission.

These data will be input into an Excel template by the local authority. Data will be at a family level and contain an identifier number/Family ID for each family. These will be shared by the local authority with IFF Research via a CSV file on a secure platform. There will be no name/address data.

Stage 2b: Cohort Level submission

These data will uploaded via an Excel template by the LA to IFF Research's secure transfer portal.

Stage 3: Data processing

All data will be cleansed by IFF Research. The data will be processed, analysed and reports produced at a national and local level. Data will be stored securely on IFF Research IT systems (which have undergone DLUHC cyber assurance checks). Data to be retained by supplier for length of contract (until March 2025). IFF will ascribe each case a new unique identifier/Family ID before sharing back to DLUHC so as to minimise the transfer of personal data.

Stage 4a: Distributing Local reports

Each participating LA will receive a tailored local report. These will be shared with DLUHC and sent via email as they these will not contain any personal data).

Stage 4b: Publication of Evidence- DLUHC and government departments

National reports produced by IFF Research will be shared with the Supporting Families team in DLUHC. The national report for 2024 will be published on gov.uk.

Stage 4c: Storage of processed data files

The processed full data files (with new unique identifiers/Family ID) will be supplied to DLUHC and DFE by IFF Research using Egress. These files will not contain any personal data as it will not include the original Family ID provided by LAs. This data will be used for further analysis as needed by ministers and government departments. This will be stored securely on departmental systems.

8. PERSONAL DATA COVERED BY THIS AGREEMENT

A unique identifier referenced as a 'Family ID' is being supplied with the data and so represents pseudonymised personal data. If local authority systems were compromised, and Family IDs matched with personal information held by local authorities, there is a risk families could be identified. This is therefore considered to be personal data because the data in the family 'packet' contains details relating to family needs, which includes sensitive topics such as domestic abuse and childhood sexual exploitation. However, we have minimised this risk by creating a new unique identifier/Family ID for government analytical use. This means the pseudonymised personal data is not shared any further than is necessary and therefore in adherence to the principle of data minimisation.

9. PROTECTION OF PERSONAL DATA

9.1 DLUHC and Camden Council agree to share the Personal Data only as set out in this Agreement.

9.2 In relation to any third-party Processors appointed by the Parties to process the shared Personal Data, the Parties will comply with data protection legislation in relation to that appointment. In this case, the third-party Processors are small number of DfE analyst colleagues and IFF Research.

9.3 DLUHC and Camden Council will maintain the levels of security under this Agreement throughout the process.

9.4 DLUHC and Camden Council shall not disclose or transfer data outside the UK.

9.5. DLUHC and Camden Council will each ensure that all staff involved in the processing of personal data under this Agreement have received appropriate data protection training.

10. RETENTION AND DESTRUCTION OF DATA

The data will be retained by the Supplier throughout the duration of the project (until March 2025). This is needed in order to identify trends that emerge over time and successfully complete valuable analysis. DLUHC will retain non-personal data for further analytical use, however this data will not contain the Family ID and therefore will be fully anonymised. No personal data will be retained beyond March 2025 by DLUHC, DfE or IFF Research.

11. LOSS OR UNAUTHORISED RELEASE

11.1 DLUHC and Camden Council (including the Supplier, IFF Research) will report to all parties any loss or unauthorised release of the personal data no later than 48 hours after the loss or unauthorised release is identified (comes to their attention). In the case of a personal data breach, the data controller shall without undue delay and, where feasible, not later than 72 hours after having become aware of it, notify the personal data breach to the Information Commissioner's Office (as supervisory authority competent in accordance with article 55 UK GDPR), unless the personal data breach is unlikely to result in a risk to the rights and freedoms of natural persons. Where the notification to the supervisory authority is not made within 72 hours, it shall be accompanied by reasons for the delay.

11.2 DLUHC and Camden Council acknowledge that any loss or unauthorised release of the personal data can be treated as valid grounds for immediately terminating this agreement by any party.

12. FREEDOM OF INFORMATION

12.1 DLUHC and Camden Council acknowledge that the information is subject to the requirements of the FOIA and the Environmental Information Regulations and shall assist and cooperate to enable compliance with their Information disclosure requirement in relation to the project/programme.

13. RIGHTS OF DATA SUBJECTS

13.1. DLUHC and Camden Council as independent data controllers will ensure that the processing of the shared personal data is fair and transparent and the data subjects' right to be informed under the data protection legislation is met. Data subjects are already informed that data will be used for evaluation. However, we ask local authorities to update their privacy notices (held on websites and provided by workers to families on request) to explain that this will be shared with the national team on a pseudonymised basis.

- We previously did this for the National Impact Study evaluation, so there is precedent, and areas have taken part in a similar exercise before.
- This is in line with the right to be informed set out in Article 12(1), and Articles 13 and 14 of the GDPR.

13.2. Data subjects have the rights of access accorded by article 15 of the UK GDPR, including the right to obtain a copy of the information held about them. DLUHC and Camden Council as data controllers will each be responsible for responding to subject access requests, under their respective policies and procedures, that each receives. DLUHC and Camden Council will aim to respond appropriately to any subject access or other rights request within one month of receipt. If the request is more complex, DLUHC and Camden Council will respond to rights requests within the appropriate legislative timeframe.

14. CORRECTING DATA

14.1 The Parties will respond appropriately, under their respective policies and procedures, to any requests to correct the data they have shared.

15. DELETING/ERASING DATA

15.1 DLUHC and Camden Council will respect the right to erasure where it is applicable to the data concerned. Further information relating to requirements under this Agreement for the retention and deletion of the data is in section 10.

15.2 The right to object may apply to the processing of data in certain circumstances and DLUHC and Camden Council as data controllers will assess whether processing should continue in accordance with article 21 UK GDPR in cases when an objection is received from a relevant data subject.

16. AUTHORISED REPRESENTATIVES

16.1 DLUHC and Camden Council will each appoint an Authorised Representative to be the primary point of contact in all day-to-day matters relating to this Agreement:

16.2 For DLUHC

Name: Matilda Wring
Postal Address: Fry Building, 2 Marsham Street, London SW1P 4DF
E-mail address: matilda.wring@levellingup.gov.uk
Telephone number: [redacted]

16.3 For Camden Council

Name: Andrew Maughan
Postal Address: 5 Pancras Square, London, N1C 4AG
E-mail address: dpo@camden.gov.uk
Telephone number: 020 7974 4444

17. TERMINATION

17.1 Either Party may terminate this Agreement upon ***one month's written*** notice to the other.

17.2 Either Party may terminate this Agreement with immediate effect in the event of a material breach of its obligations by the other Party to this Agreement.

18. STATUTORY COMPLIANCE

18.1 The Parties shall comply with all relevant legislation, regulations, orders, statutory instruments and any amendments or re-enactments thereof from the commencement of this agreement.

19. DISPUTE RESOLUTION

19.1 The Parties shall each appoint a nominated representative to whom any disputes arising from the operation of this Agreement shall be referred.

19.2 If the Parties are unable to agree a matter arising under the terms and clauses of this Agreement, such a dispute shall be referred to the senior officers of the nominated representatives for resolution. The decision of the senior officers shall bind all Parties and be treated as resolving the dispute.

19.3 The Parties shall, where a dispute cannot be resolved by agreement between their senior officers, appoint an adjudicator whose decision shall be final.

19.4 In the event of a dispute or claim brought by a data subject or the Information Commissioner's Office concerning the processing of shared Personal Data against either of the Parties, the Parties will inform each other about any such disputes or claims and will cooperate with a view to settling them amicably in a timely fashion.

20. REVIEW OF AGREEMENT

20.1. This Agreement covers ongoing data shares (each bi-annual collection scheduled between July 2023 until February 2025).

AS WITNESS of which the Parties have set their hands on the day and year first above written

SIGNED for and on behalf of

Deputy Director, Changing Futures & Supporting Families, Department for Levelling Up, Housing and Communities.

By:



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Name: Kirby Swales
Title: Deputy Director, Changing Futures and Supporting Families
Date: 06/07/2023

SIGNED for and on behalf of

Director of Children's Prevention, Family Help and Safeguarding, Camden Council

THE INFORMATION ASSET OWNER AT CAMDEN COUNCIL

By:



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Name: Rashida Baig
Title: Director of Children's Prevention, Family Help and Safeguarding
Date: 15/11/2023